

TERMS OF SERVICE

Date of Initial Publication: 1/22/2025

Last Updated: 1/22/2025

These terms and conditions (these “*Terms*”) constitute a binding legal agreement between each individual, entity, group or association who views, interacts, links to or otherwise uses or derives any benefit from the Site (as defined below) (“*Users*”) and MetaLeX Labs, Inc., a Delaware corporation (the owner/operator of the Site) (collectively with its successors and assigns, the “*Site Operator*”).

Please contact us at support@metalex.tech for any technical questions or issues and legal@metalex.tech for legal issues/notices.

SUMMARY OF TERMS

Among other things, the Terms and Conditions provide that you must:

- be of the age of majority in your jurisdiction (and in any event be at least thirteen years of age), of sound mental capacity and have all technical knowledge necessary or advisable to understand and evaluate the risks of the Site and MetaLeX;
- agree that the Site is provided for informational purposes only and is not directly or indirectly in control of or capable of interacting with the Blockchain Systems or performing or effecting any transactions on your behalf;
- agree that the Site is only being provided as an aid to your own independent research and evaluation of MetaLeX and that no representation or warranty is being made as to the accuracy or completeness of information on the Site;
- agree that the ability of the Site to connect with third-party wallet applications or devices is not an endorsement or recommendation thereof by or on behalf of the Site Operator, and you must assume all responsibility for selecting and evaluating and incurring the risks of any bugs, defects, malfunctions or interruptions of any third-party wallet applications or devices you directly or indirectly use in connection with the Site;
- comply with all applicable laws, rules and regulations;
- not be a person who is subject to national or international sanctions under the laws of the United States or any other nation-state or under any applicable law;
- not hold the Site Operator or any of its representatives or affiliates liable for any damages you suffer in connection with your use of the Site, any Host Blockchain System, any MetaLeX Smart Contract System, or any other Blockchain System, Smart Contract, Blockchain Token, or third-party dependency or integration;
- waive your right to initiate or participate in class actions relating to the Site; and
- resolve any disputes regarding the Site pursuant to binding, confidential arbitration and waive your right to a jury trial in connection with such disputes.

The above is only a partial summary. You should read the Terms and Conditions in their entirety. In the event of any conflict or inconsistency between this summary and the Terms and Conditions relating to any issue, the Terms and Conditions will be determinative of the issue.

BACKGROUND INFORMATION

A. About the Site Operator

The Site aggregates and publishes publicly available third-party information about, among other things:

- the MetaLeX Protocol;
- the MetaLeX Smart Contract Systems;

- the Third-Party Smart Contract Systems;
- the Blockchain Systems to which the foregoing Smart Contract Systems are deployed; and
- Blockchain Tokens related to the foregoing.

The Site also offers interaction methods whereby the User can indicate a transaction the User would like to perform in connection with the MetaLeX Smart Contract System (such as swapping one Blockchain Token for another).

When used in this way, the Site can generate a draft transaction message which the User can independently use in conjunction with a third-party wallet application or device to conduct transactions on Blockchain Systems or Third-Party Smart Contract Systems.

B. About the Site Operator

MetaLeX Labs, Inc., a Delaware corporation, owns and operates the Site; owns, researches and develops the MetaLeX Protocol; and deploys the MetaLeX Smart Contract Systems. Certain of the MetaLeX Smart Contract Systems are deployed on behalf of third-party clients of the Site Operator or one or more of its Affiliates pursuant to external written agreements.

C. About MetaLeX Protocol

The MetaLeX Protocol is software source code freely licensed to the public, which provides, among other things, for methods of creating, organizing, and operating legal entities and legal agreements augmented by autonomous technologies such as Smart Contracts and artificial intelligence agents. The MetaLeX Smart Contract System is a copy of the MetaLeX Protocol that has been compiled to bytecode and permanently associated with one or more specific public addresses on the Host Blockchain Systems. Through a compatible third-party wallet application or device or Blockchain System node any User may pay Validators to operate and record the results of the MetaLeX Smart Contract System in accordance with the User's instructions, thus effectuating operations and transactions on the Host Blockchain Systems.

D. Relationship to MetaLeX Smart Contract System

The Site Operator does not own, operate or control Blockchain Systems, Third-Party Smart Contract Systems or the MetaLeX Smart Contract System. Using Third-Party Smart Contract Systems, Blockchain Systems, or the MetaLeX Smart Contract System does not require use of the Site. The Site aggregates and publishes publicly available information about the MetaLeX Smart Contract System in a user- friendly and convenient format. Such information is also independently available from other sources—for example, a person may directly review MetaLeX transaction history, account balances and the MetaLeX Smart Contract System on a compatible block explorer for a Third-Party Smart Contract System.

By combining publicly available information with the User's interactions with the Site, the Site can draft standard transaction messages compatible with the MetaLeX Smart Contract System which are designed to accomplish the User's operational goals as expressed through the interactions. If the User so wishes, the User may broadcast such messages to the validator network for any relevant Blockchain System in order to initiate Blockchain Token transactions.

All draft transaction messages are delivered by the Site via API to a compatible third-party wallet application or device selected by the User after pressing the "Connect Wallet" (or similar) button on the Site. The User must personally review and authorize all transaction messages that the User wishes to send to Blockchain Systems, Third-Party Smart Contract Systems or other Blockchain Systems; this requires the User to sign the relevant transaction message with a private cryptographic key inaccessible to the Site. The User-authorized message will then be broadcast to validators through the wallet application or device and the User may pay a network fee to have the validators apply the transaction message to the MetaLeX Smart Contract System and record the results on the appropriate blockchain—resulting in a Blockchain Token transaction being completed on that blockchain.

The Site Operator and the Site are not agents or intermediaries of the User, do not store or have access to or control over any Blockchain Tokens, private keys, passwords, accounts or other property of the User, and are not capable of performing transactions or sending transaction messages on behalf of the User. The Site

does not hold and cannot purchase, sell or trade any Blockchain Tokens. All transactions relating to the MetaLeX Smart Contract System are effected and recorded solely through the interactions of the User with the respective validators, who are not under the control of or affiliated with the Site Operator or the Site.

E. Disclaimers and Disclosures

Important disclaimers and disclosures regarding the subject material of the Site can be found in the Disclaimers/Disclosures on Exhibit A. You should familiarize yourself with these disclaimers and disclosures and conduct your own thorough due diligence into the MetaLeX Protocol before using the Site.

BINDING PROVISIONS

1. Certain Defined Terms

- **“Blockchain”** means a blockchain or distributed ledger technology or other similar technology.
- **“Blockchain System”** means the combination of (i) a Blockchain; and (ii) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read from, store data with respect to, create public proofs with respect to, or write to such Blockchain.
- **“Blockchain Tokens”** means virtual currencies, Blockchain Tokens and other units of account or mediums of exchange that are implemented on a Blockchain System.
- **“Host Blockchain Systems”** means each Blockchain System to which any MetaLeX Smart Contract System is deployed, if such MetaLeX Smart Contract System relates to the Site.
- **“MetaLeX Protocol”** means the source code for Smart Contracts (and not web applications or other software not directly hosted on Blockchain Systems) at <https://github.com/MetaLex-Tech>, or any successor thereto expressly determined by the Site Operator to constitute or form a part of the ‘MetaLeX Protocol’.
- **“MetaLeX Smart Contract Systems”** means all Smart Contracts that: (i) are compiled from the MetaLeX Protocol (or any part thereof); and (ii) are deployed to production Blockchain Systems by the Site Operator.
- **“Site”** means the web site, web pages, web applications and information and software available at or accessible through the URL <https://metalex.tech/> or any sub-URL of such URL and any other MetaLeX-related website or web application maintained by the Site Operator.
- **“Smart Contract”** means Smart Contract bytecode deployed to a Blockchain System such that a copy of such bytecode is stored by the Blockchain System and the nodes (or a subset thereof) on such Blockchain System validate and effectuate state transitions of such bytecodes as part of the consensus rules of such Blockchain System
- **“Third-Party Smart Contract Systems”** means Smart Contract Systems not deployed by the Site Operator.

2. Site Operator Discretion; Certain Risks of the Site

Each User hereby acknowledges and agrees and consents to, and assumes the risks of, the matters described in this Section 2.

2.1 Content

Site Operator makes no representations or warranties as to the quality, origin, or ownership of any content found on or available through the Site. The Site Operator shall not be liable for any errors, misrepresentations, or omissions in, of, and about, the content, nor for the availability of the content. The Site Operator shall not be liable for any losses, injuries, or damages from the purchase, inability to purchase, display, or use of content.

2.2 Token Lists and Token Identification

In providing information about Blockchain Tokens, the Site associates or presumes the association of a Blockchain Token name, symbol or logo with a specific Smart Contract deployed to one or more Blockchain Systems. In making such associations, the Site relies upon third-party resources which may not be accurate or may not conform to a given User's expectations. Multiple Smart Contracts can utilize the same Blockchain Token name or Blockchain Token symbol as one another, meaning that the name or symbol of a Blockchain Token does not guarantee that it is the Blockchain Token desired by the User or generally associated with such name or symbol. Users must not rely on the name, symbol or branding of a Blockchain Token on the Site, but instead must examine the specific Smart Contract associated with the name, symbol or branding and confirm that the Blockchain Token accords with User's expectations.

2.3 User Responsibility for Accounts & Security

Users are solely responsible for all matters relating to their accounts, addresses and Blockchain Tokens and for ensuring that all uses thereof comply fully with these Terms. Users are solely responsible for protecting the data integrity and confidentiality of their login information and passwords or private keys for the Site or any wallet applications or devices used in connection with the Site. The compatibility of the Site with wallet applications and devices or other third-party applications or devices is not intended as, and you hereby agree not to construe such compatibility as, an endorsement or recommendation thereof or a warranty, guarantee, promise or assurance regarding the fitness or security thereof.

2.4 Smart Contract Fees Irreversible

Use of the MetaLeX Smart Contract System and use of Blockchain Systems and Third-Party Smart Contract Systems may be subject to transaction fees, some or all of which may be paid to parties other than the Site Operators. The Site Operator has no ability to reverse or refund any fees not paid directly and solely to the Site Operator. Any fees paid to the Site Operator are non-refundable except in the sole and absolute discretion of the Site Operator.

2.5 Site Operator Has No Business Plan and May Discontinue, Limit, Terminate or Refuse Support for the Site or any Smart Contracts, Tokens or Pools

Except as otherwise provided in any applicable written agreements (external to these Terms) between the Site Operator and third parties:

- The Site is a free web application operated and maintained in the sole and absolute discretion of the Site Operator. The Site Operator assumes no duties, liabilities, obligations or undertakings to Users to continue operating or maintaining the availability of the Site and may terminate or change the Site in any or all respects at any time.
- The Site Operator has no obligation to ensure that the Site is a complete and accurate source of all information relating to the MetaLeX Smart Contract System, Blockchain Systems, Third-Party Smart Contract Systems or any other subject matter. T
- he Site does not necessarily display all Blockchain Tokens that are available for trading in connection with the MetaLeX Smart Contract System or Blockchain Systems or Third-Party Smart Contract Systems. Even if the Site currently displays a particular Blockchain Token or Blockchain Token pair, the Site may discontinue tracking and publishing information about that Blockchain Token or Blockchain Token pair at any time, in the Site Operator's sole and absolute discretion.
- In the event of such a discontinuation, Users may need to rely on third-party resources such as block explorers or Blockchain System nodes in order to get equivalent information, and, depending on the User's level of expertise and the quality of such third-party resources, this may result in the User incurring financial losses due to delays or mistakes in processing information or transactions.

Even if the Site Operator has any such obligations under any external written agreements outside of these Terms, Users are not beneficiaries of and do not have any rights under any such written agreements.

The MetaLeX Protocol is available under a free open-source license, and the Site Operator does not have proprietary or exclusive rights in all copies or derivatives thereof. It is possible that additional copies of the MetaLeX Protocol or derivatives thereof will be deployed to other Blockchain Systems in the future by any

person, resulting in the existence of multiple ‘MetaLeX-branded’ Blockchain Systems or Smart Contract systems. The Site Operator is under no obligation to publish information for all such copies of the MetaLeX Protocol or to warn Users regarding the existence of such alternatives.

2.6 Site Operator May Deny or Limit Access on a Targeted Basis

Except as otherwise provided in any applicable written agreements (external to these Terms) between the Site Operator and third parties, the Site Operator reserves the right to terminate or limit any person’s User status or access to or use of the Site at any time, without or without notice, as determined in the Site Operator’s sole and absolute discretion. Such terminations and limitations may be based on any factor or combination of factors, including a person’s identity, blockchain address, IP address, internet service provider, virtual provider network provider, metadata, browser software, device type, wallet application, wallet device, region of citizenship or residence or current location, or suspicion that User has engaged or intends to engage in any Prohibited Use.

2.7 Site Operator May Cooperate with Investigations and Disclose Information

Except as otherwise provided in any applicable written agreements (external to these Terms) between the Site Operator and third parties, the Site Operator reserves the right at all times to cooperate with any governmental or law enforcement investigation or to disclose any information it deems necessary to satisfy any applicable law, regulation, legal process or governmental request, or to edit, refuse to post or to remove any information or materials, in whole or in part, based on any applicable law, regulation, legal process or governmental request, in the Site Operator’s sole and absolute discretion.

2.8 No Regulatory Supervision

The Site Operator and the Site are not registered or qualified with or licensed by, do not report to and are not under the active supervision of any government agency or financial regulatory authority or organization. No government or regulator has approved or consulted with the Site Operator regarding the accuracy or completeness of any information available on the Site. Similarly, the technology, systems, Blockchain Tokens and persons relevant to information published on the Site may not be registered with or under the active supervision of or be registered or qualified with or licensed by any government agency or financial regulatory authority or organization. The Site Operator is not registered as a broker, dealer, advisor, transfer agent or other intermediary.

3. Intellectual Property Matters

3.1 License to Use Site

Each User, subject to and conditioned upon such User’s eligibility under and acceptance of and adherence to these Terms, is hereby granted a personal, revocable, non-exclusive, non-transferable, non-sub- licensable license to view, access and use the Site for the Permitted Uses in accordance with these Terms.

3.2 Marks, Logos and Branding

All MetaLeX-related marks, logos and branding used on the Site are proprietary and are prohibited from being used, reproduced, or copied without the express written consent of the Site Operator. All other marks, logos and branding appearing on the Site (including Blockchain Token names, symbols and logos identified on the Site which may trade in connection with the MetaLeX Smart Contract System) are the property of their respective owners.

3.3 Privacy Policy

The Site Operator may directly or indirectly collect and temporarily store personally identifiable information for operational purposes, including for the purpose of identifying blockchain addresses or IP addresses that may indicate use of the Site from prohibited jurisdictions or by sanctioned persons or other Prohibited Uses. Except as required by applicable law, the Site Operator will have no obligation of confidentiality with respect to any information collected by the Site.

3.4 MetaLeX Protocol

The MetaLeX Protocol will be available in various repositories at <https://github.com/MetaLeX-fi>, and will be subject to any licenses set forth in each such repository, as applicable.

4. Permitted & Prohibited Uses

4.1 Permitted Uses

The Site is available exclusively for use by technologically and financially sophisticated persons who wish to use the Site for lawful informational purposes only as an aid to their own research, due diligence and financial decision making. Before utilizing information from the Site (including any draft transaction messages) to engage in transactions, each User must independently verify the accuracy of such information (and the consistency of such draft transaction messages with the User's intentions). The foregoing are the "***Permitted Uses***".

4.2 Prohibited Uses

Each User must not, directly or indirectly, in connection with their use of the Site:

- utilize the Site other than for the Permitted Uses;
- utilize the Site at any time when any representation of User set forth in Section 5 is untrue or inaccurate;
- rely on the Site as a basis for or a source of advice concerning any financial decision making or transactions;
- employ any device, scheme or artifice to defraud, or otherwise materially mislead, any person;
- engage in any act, practice or course of business that operates or would operate as a fraud or deceit upon the Site Operator or any other person;
- violate, breach or fail to comply with any applicable provision of these Terms or any other terms of service, privacy policy, trading policy or other contract governing the use of the Site;
- engage or attempt to engage in or assist any hack of or attack on the Site or any wallet application or device, including any "sybil attack", "DoS attack" or "griefing attack" or theft;
- commit any violation of applicable laws, rules or regulations;
- engage in or knowingly facilitate any "front-running," "wash trading," "pump and dump trading," "ramping," "cornering" or fraudulent, deceptive or manipulative trading activities, including:
 - trading at successively lower or higher prices for the purpose of creating or inducing a false, misleading or artificial appearance of activity, unduly or improperly influencing market prices or establishing a price which does not reflect the true state of the market;
 - trading without changes in material beneficial ownership for the purpose of creating or inducing a false or misleading appearance of trading activity or creating or inducing a false or misleading appearance with respect to market conditions; or
 - participating in, facilitating, assisting or knowingly transacting with any pool, syndicate or joint account organized for the purpose of unfairly or deceptively influencing market prices;
- transact in securities, commodities futures, trading of commodities on a leveraged, margined or financed basis, binary options (including prediction-market transactions), real estate or real estate leases, equipment leases, debt financings, equity financings or other similar transactions, in each case, if such transactions do not comply with all laws, rules and regulations applicable to the parties and assets engaged therein;
- engage in Blockchain Token-based or other financings of a business, enterprise, venture, DAO, software development project or other initiative, including ICOs, DAICOs, IEOs, or other Blockchain Token-based fundraising events, if such transactions do not comply with all laws, rules and regulations applicable to the parties and assets engaged therein; or
- engage in any act, practice or course of business that operates to circumvent any sanctions or export controls targeting the User or the country or territory where User is located.

The foregoing matters are referred to herein as "***Prohibited Uses***".

5. Representations and Warranties of Users

By using the Site, each User represents and warrants to the Site Operator that the following statements and information are accurate and complete at all relevant times. In the event that any such statement or information becomes untrue as to a User, User shall immediately cease accessing and using the Site.

5.1 Adult Status; Capacity; Residence; Etc.

If User is an individual, User is of legal age in the jurisdiction in which User resides (and in any event is older than eighteen years of age) and is of sound mind. If User is a business entity, User is duly organized, validly existing and in good standing under the laws of the jurisdiction in which it is organized, and has all requisite power and authority for a business entity of its type to carry on its business as now conducted.

5.2 Power and Authority

User has all requisite capacity, power and authority to accept the terms and conditions of these Terms and to carry out and perform its obligations under these Terms. These Terms constitute a legal, valid and binding obligation of User enforceable against User in accordance with its terms.

5.3 No Conflict; Compliance with Law

User agreeing to these Term and using the Site does not constitute, and would not reasonably be expected to result in (with or without notice, lapse of time, or both) a breach, default, contravention or violation of any law applicable to User, or contract or agreement to which User is a party or by which User is bound.

5.4 Absence of Sanctions

User is not, (and, if User is an entity, User is not owned or controlled by any other person who is), and is not acting on behalf of any other person who is, located, ordinarily resident, organized, established, or domiciled in any country where use of the Site, the MetaLeX Smart Contract System, Blockchain Systems, Third-Party Smart Contract Systems or related activities is illegal, prohibited, or requires a permit or license that is not held by the User. User is not (and, if User is an entity, User is not owned or controlled by any other person who is), and is not acting on behalf of any other person who is, identified on any list of prohibited parties under any law or by any nation or government, state or other political subdivision thereof, any entity exercising legislative, judicial or administrative functions of or pertaining to government such as the sanctions lists maintained by the United States, United Kingdom, British Virgin Islands, United Nations Security Council, the U.S. government (including the U.S. Treasury Department's Specially Designated Nationals list and Foreign Sanctions Evaders list), or the European Union (EU) or its member states. The Blockchain Tokens or other funds, money, or monetary equivalents User uses to participate in the Site, MetaLeX Smart Contract System, Blockchain Systems or Third-Party Smart Contract Systems are not derived from, and do not otherwise represent the proceeds of, any activities done in violation or contravention of any law.

5.5 Non-Reliance

User is knowledgeable, experienced and sophisticated in using and evaluating blockchain and related technologies and assets, including Third-Party Smart Contract Systems, Blockchain Tokens, yield-generating Smart Contract systems, automated market making Smart Contract systems, bonding curve systems and "Smart Contracts" (runtime bytecode deployed to Third-Party Smart Contract Systems or another blockchain). User has conducted its own thorough independent investigation and analysis of the MetaLeX Smart Contract System, Blockchain Systems, Third-Party Smart Contract Systems and the other matters contemplated by these Terms, and has not relied upon any information, statement, omission, representation or warranty, express or implied, written or oral, made by or on behalf of Site Operator in connection therewith, except as expressly set forth by Site Operator in these Terms.

6. Risks, Disclaimers and Limitations of Liability

Each User hereby acknowledges and agrees and consents to, and assumes the risks of, the matters described in this Section 6.

6.1 No Consequential, Incidental or Punitive Damages

Notwithstanding anything to the contrary contained on the Site, in these Terms, or in any other agreement or publication, Site Operator shall not be liable to any person, whether in contract, tort (including pursuant to any cause of action alleging negligence), warranty or otherwise, for any economic or other damages to any User or other person, including any special, incidental, consequential, indirect, punitive or exemplary damages (including but not limited to lost data, lost profits or savings, loss of business or other economic loss) arising out of or related to these Terms, whether or not Site Operator has been advised or knew of the possibility of such damages, and regardless of the nature of the cause of action or theory asserted.

6.2 Disclaimer of Representations

The Site is being provided on an “AS IS” and “AS AVAILABLE” basis. To the fullest extent permitted by law, Site Operator is not making, and hereby disclaims, any and all information, statements, omissions, representations and warranties, express or implied, written or oral, equitable, legal or statutory, in connection with the Site and the other matters contemplated by these Terms, including any representations or warranties of title, non-infringement, merchantability, usage, security, uptime, reliability, suitability or fitness for any particular purpose, workmanship or technical quality of any code or software used in or relating to the Site. User acknowledges and agrees that use of the Site is at the User’s own risk.

6.3 No Responsibility for Tokens; No Guarantee of Uniqueness or IP

Site Operator has no responsibility for the Blockchain Tokens traded by Users on the MetaLeX Smart Contract System or Blockchain Systems or Third-Party Smart Contract Systems. Site Operator does not investigate and cannot guarantee or warrant the authenticity, originality, uniqueness, marketability, legality or value of any Blockchain Token traded by Users on the MetaLeX Smart Contract System or Blockchain Systems or Third-Party Smart Contract Systems, even if information about such Blockchain Token is available on the Site.

6.4 No Professional Advice or Liability

All information provided by or on behalf of Site Operator is for informational purposes only and should not be construed as professional, accounting or legal advice. Users should not take or refrain from taking any action in reliance on any information contained in these Terms or provided by or on behalf of the Site Operator. Before Users make any financial, legal, or other decisions involving the Site, Users should seek independent professional advice from persons licensed and qualified in the area for which such advice would be appropriate.

6.5 Limited Survival Period for Claims

Any claim or cause of action a User may have or acquire in connection with the Site or any of the other matters contemplated by these Terms shall survive for the shorter of, and may be brought against Site Operator solely prior to: (a) the expiration of the statute of limitations applicable thereto; and (b) the date that is six months after the date on which the facts and circumstances giving rise to such claim or cause of action first arose.

6.6 Third-Party Offerings and Content

References, links or referrals to or connections with or reliance on third-party resources, products, services or content, including Smart Contracts developed or operated by third parties, may be provided to Users in connection with the Site. In addition, third parties may offer promotions related to the Site. Site Operator does not endorse or assume any responsibility for any activities of or resources, products, services, content or promotions owned, controlled, operated or sponsored by third parties. If Users access any such resources, products, services or content or participate in any such promotions, Users do so solely at their own risk. Each User hereby expressly waives and releases Site Operator from all liability arising from User’s use of any such resources, products, services or content or participation in any such promotions.

User further acknowledges and agrees that Site Operator shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with use of or reliance on any such resources, products, services, content or promotions from third parties.

6.7 Certain Uses and Risks of Blockchain Technology

- (a) Use of Blockchain Technology. Site Operator or third parties may utilize experimental cryptographic technologies and blockchain technologies, including Blockchain Tokens, cryptocurrencies, stablecoins, “Smart Contracts,” consensus algorithms, voting systems and distributed, decentralized or peer-to-peer networks or systems in connection with the Site or systems about which the Site provides information. Each User acknowledges and agrees that such technologies are novel, experimental, and speculative, and that therefore there is significant uncertainty regarding the operation and effects and risks thereof and the application of existing law thereto.
- (b) Certain Risks of Blockchain Technology. The technologies relevant to the Site depend on public peer-to-peer networks such as Blockchain Systems and the Third-Party Smart Contract Systems that are not under the control or influence of the Site Operator and are subject to many risks and uncertainties. Such technologies include the MetaLeX Smart Contract System, which (other than based on any multisignature arrangements that may apply) Site Operator has no ability to change, other than ceasing to display information about certain “Smart Contracts” or adding information about new “Smart Contracts”. Users are solely responsible for the safekeeping of the private key associated with the blockchain address used in connection with the MetaLeX Smart Contract System. The Site Operator will not be able to restore or issue any refund in respect of property lost or frozen due to loss of private keys or otherwise. If a User is not able to spend or use Blockchain Tokens due to loss or theft of the corresponding private key or otherwise, a User will be unable to enjoy the benefits of such Blockchain Tokens.
- (c) Certain Risks of Smart Contract Technology. Digital assets relevant to the Site depend on the MetaLeX Smart Contract System or other Smart Contracts deployed to Third-Party Smart Contract Systems or other Blockchain Systems, or on the Blockchain Systems, each of which may be coded or deployed by persons other than Site Operator. Blockchain Systems, Third-Party Smart Contract Systems, and other Blockchain Systems, and, once deployed to a Blockchain System, the *code* of Smart Contracts, including the MetaLeX Smart Contract System, typically cannot be modified, or can only be modified in limited ways. In the event that the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System or other Smart Contracts or Blockchain Systems are adversely affected by malfunctions, bugs, defects, malfunctions, hacking, theft, attacks, negligent coding or design choices, or changes to the applicable protocol rules, Users may be exposed to a risk of total loss and forfeiture of all relevant digital assets. Site Operator assumes no liability or responsibility for any of the foregoing matters.
- (d) Asset Prices. The fiat-denominated prices and value in public markets of cryptocurrencies and Blockchain Tokens have historically been subject to dramatic fluctuations and may be highly volatile. As relatively new products and technologies, blockchain-based assets are not widely accepted as a means of payment for goods and services. A significant portion of demand for these assets is *generated* by speculators and investors seeking to profit from the short- or long-term holding of blockchain assets. The market value of any Blockchain Token may decline below the price for which a User acquires such asset through the Blockchain Systems, Third-Party Smart Contract Systems or MetaLeX Smart Contract System or on any other system. User acknowledges and agrees that the costs and speeds of transacting with cryptographic and blockchain-based systems such as the Blockchain Systems, Third-Party Smart Contract Systems and MetaLeX Smart Contract System are variable and may increase or decrease dramatically at any time, resulting in prolonged inability to access or use any Blockchain Tokens.
- (e) Regulatory Uncertainty. Blockchain technologies and digital assets are subject to many legal and regulatory uncertainties, and the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System or any Blockchain Tokens could be adversely impacted by one or more regulatory or legal inquiries, actions, suits, investigations, claims, fines *or* judgments, which could impede or limit the ability of User to continue the use and enjoyment of such assets and technologies.
- (f) Cryptography Risks. Cryptography is a progressing field. Advances in code cracking or technical advances such as the development of quantum computers may present risks to Blockchain Systems, the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System or Blockchain Tokens, including the theft, loss or inaccessibility thereof.
- (g) Fork Handling. Blockchain Systems, Third-Party Smart Contract Systems, the MetaLeX Smart Contract System, and all Blockchain Tokens may be subject to “forks.” Forks occur when some or all persons

running the software clients for a particular Blockchain System adopt a new client or a new version of an existing client that: (i) changes the protocol rules in backwards-compatible or backwards-incompatible manner that affects which transactions can be added into later blocks, how later blocks are added to the blockchain, or other matters relating to the future operation of the protocol; or (ii) reorganizes or changes past blocks to alter the history of the blockchain. Some forks are “contentious” and thus may result in two or more persistent alternative versions of the protocol or blockchain, either of which may be viewed as or claimed to be the legitimate or genuine continuation of the original. Site Operator may not be able to anticipate, control or influence the occurrence or outcome of forks, and does not assume any risk, liability or obligation in connection therewith. Without limiting the generality of the foregoing, Site Operator does not assume any responsibility to notify a User of pending, threatened or completed forks. Site Operator will respond (or refrain from responding) to any forks in such manner as Site Operator determines in its sole and absolute discretion, and Site Operator shall not have any duty or obligation or liability to a User if such response (or lack of such response) acts to a User detriment. Without limiting the generality of the foregoing, Site Operator’s possible and permissible responses to a fork may include: (i) honoring the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System and Blockchain Tokens on both chains; (ii) honoring the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System and Blockchain Tokens on only one of the chains; (iii) honoring the Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System and Blockchain Tokens in different respects or to a different extent on both chains; or (iv) any other response or policy or procedure, as determined by Site Operator in its sole and absolute discretion. Each User assumes full responsibility to independently remain apprised of and informed about possible forks, and to manage the User’s own interests and risks in connection therewith.

- (h) Essential Third-Party Software Dependencies. The Blockchain Systems, Third-Party Smart Contract Systems, MetaLeX Smart Contract System and other relevant Blockchain Systems and Smart Contracts are public software utilities which are accessible directly through any compatible node or indirectly through any compatible “wallet” application (such as the web browser plugin Keplr) which interacts with such a node. Interacting with the MetaLeX Smart Contract System does not require use of the Site, but the Site provides a convenient and user- friendly method of reading and displaying data from the MetaLeX Smart Contract System and generating standard transaction messages compatible with the MetaLeX Smart Contract System. Because the Site does not provide wallet software or nodes for Blockchain Systems or Third-Party Smart Contract Systems, such software constitutes an essential third-party or user dependency without which the MetaLeX Smart Contract System cannot be utilized, and Blockchain Tokens cannot be traded or used. Furthermore, the site may utilize APIs, middleware and servers of Site Operator or third parties, and Site Operator does not guarantee the continued operation, maintenance, availability or security of any of the foregoing dependencies.

6.8 Tax Issues

The tax consequences of purchasing, selling, holding, transferring or locking Blockchain Tokens or otherwise utilizing the MetaLeX Smart Contract System are uncertain, may vary by jurisdiction and may be adverse to a User. Site Operator has undertaken no due diligence or investigation into such tax consequences, assumes no obligation or liability to optimize the tax consequences to any person and is not providing any tax advice.

6.9 Legal Limitations on Disclaimers

Some jurisdictions do not allow the exclusion of certain warranties or the limitation or exclusion of certain liabilities and damages. Accordingly, some of the disclaimers and limitations set forth in these Terms may not apply in full to specific Users. The disclaimers and limitations of liability provided in these terms shall apply to the fullest extent permitted by applicable law.

6.10 Officers, Directors, Etc.

All provisions of these Terms which disclaim or limit obligations or liabilities of Site Operator shall also apply, *mutatis mutandis*, to the officers, directors, members, employees, independent contractors, agents, stockholders, debtholders and affiliates of Site Operator.

6.11 Indemnification

Each User shall defend, indemnify, compensate, reimburse and hold harmless Site Operator (and each of its

officers, directors, members, employees, agents and affiliates) from any claim, demand, action, damage, loss, cost or expense, including without limitation reasonable attorneys' fees, arising out or relating to (a) User's use of, or conduct in connection with, the Site; (b) User's violation of these Terms or any other applicable policy or contract of Site Operator; or (c) User's violation of any rights of any other person or entity in connection with use of the Site.

7. Governing Law; Dispute Resolution

7.1 Governing Law

These Terms shall be governed by and construed and interpreted in accordance with the laws of Delaware (irrespective of the choice of laws principles) as to all matters, including matters of validity, construction, effect, enforceability, performance and remedies. Although the Site may be available in other jurisdictions, each User hereby acknowledges and agrees that such availability shall not be deemed to give rise to general or specific personal jurisdiction over Site Operator in any forum outside Delaware.

7.2 Settlement Negotiations

If a User has a potential legal dispute, claim or cause of action against Site Operator, the User shall first (prior to initiating any litigation proceedings) contact Site Operator by sending an email to legal@metalex.tech describing the nature of the potential dispute, claim or cause of action and providing all relevant documentation and evidence thereof. If so elected by the Site Operator, User shall use commercially reasonable efforts to negotiate a settlement of any such legal dispute, claim or cause of action within 60 days of the delivery of such email. Any such dispute, claim or cause of action that is not finally resolved by a binding, written settlement agreement within such 60 days shall be brought and resolved exclusively in accordance with the following provisions of this Section 7.

7.3 Agreement to Binding, Exclusive Arbitration

- (a) Mandatory Binding Arbitration. All claims, disputes and controversies directly or indirectly arising out of or in connection with or directly or indirectly relating to these Terms or any of the matters or transactions contemplated by these Terms (for the avoidance of doubt, including any claim seeking to invalidate, or alleging that, all or any part of these Terms is unenforceable, void or voidable) (such claims, disputes and controversies, collectively, “**Disputes**”) shall be resolved by confidential, binding arbitration to be seated in Delaware and conducted in the English language by a single arbitrator pursuant to the Commercial Arbitration Rules of the American Arbitration Association (the “**Rules**”). The arbitrator shall be appointed in accordance with the procedures set out in the Rules. The award or decision of the arbitrator shall be final and binding upon the parties and the parties expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of the arbitrator. The judgment of any award or decision may be entered in any court having competent jurisdiction to the extent necessary. If the Company elects to have a Dispute resolved by arbitration pursuant to this provision, no party hereto shall (or shall permit its representatives to) commence, continue or pursue any Dispute in any court; provided, however, that the Company shall be entitled to obtain an injunction or injunctions to prevent breaches of this provision and to enforce specifically the terms and provisions thereof, this being in addition to any other remedy to which the Company is entitled at law or in equity, and the parties hereto hereby waive the requirement of any posting of a bond in connection with such injunctive relief or specific performance.
- (b) Waiver of Jury Trial. The parties hereby acknowledge, represent and warrant that they understand that:
 - (i) there is no judge or jury in arbitration, and, absent this mandatory provision, the parties would have the right to sue in court and have a jury trial concerning Disputes;
 - (ii) in some instances, the costs of arbitration could exceed the costs of litigation;
 - (iii) the right to discovery may be more limited in arbitration than in court; and
 - (iv) court review of an arbitration award is limited. Each of the parties hereto hereby irrevocably waives any and all right to trial by jury in any action, suit or other legal proceeding arising out of or related to these Terms or the transactions contemplated hereby.

- (i) Confidentiality of Arbitration. Except to the extent necessary to enforce their respective rights under these Terms or as otherwise required by applicable law, the parties undertake to maintain confidentiality as to the existence and events of the arbitration proceedings and as to all submissions, correspondence and evidence relating to the arbitration proceedings. This provision shall survive the termination of the arbitral proceedings.

7.4 Court Jurisdiction

To the extent that any court is required to weigh on the enforceability of Section 7.3, to enforce any judgment of the arbitrator, then, without limiting Section 7.3 or any other provision of this Agreement, the User (A) hereby irrevocably and unconditionally submit to the jurisdiction of the courts of Delaware for such purpose; (B) agrees not to commence any suit, action or other proceeding arising in connection with or based upon this instrument or the matters contemplated by this instrument except before the courts of Delaware, and (C) hereby waives, and agrees not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-named courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this instrument or the subject matter hereof or thereof may not be enforced in or by such court.

7.5 Class Action Waiver

- (a) No Class Actions Permitted. All Users hereby agree that any arbitration or other permitted action with respect to any Dispute shall be conducted in their individual capacities only and not as a class action or other representative action, and the Users expressly waive their right to file a class action or seek relief on a class basis. USERS SHALL BRING CLAIMS AGAINST SITE OPERATOR OTHER ONLY IN THEIR INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING.
- (b) Agreements if Class Action Waiver Unenforceable. If any court or arbitrator makes a final, binding and non-appealable determination that the class action waiver set forth in this Section 7.5 is void or unenforceable for any reason or that an arbitration can proceed on a class basis, then the arbitration provision set forth above shall be deemed null and void with respect to any Dispute that would thus be required to be resolved by arbitration on a class basis, and the parties shall be deemed to have not agreed to arbitrate such Dispute. In the event that, as a result of the application of the immediately preceding sentence or otherwise, any Dispute is not subject to arbitration, the parties hereby agree to submit to the personal and exclusive jurisdiction of and venue in the courts located in Delaware and to accept service of process by mail with respect to such Dispute, and hereby waive any and all jurisdictional and venue defenses otherwise available with respect to such Dispute.

8. Miscellaneous

8.1 Headings

The headings and captions contained in these Terms are for convenience of reference only, shall not be deemed to be a part of these Terms and shall not be referred to in connection with the construction or interpretation of these Terms.

8.2 Successors and Assigns

These Terms shall inure to the benefit of Site Operator, the Users, and their respective permitted successors, permitted assigns, permitted transferees and permitted delegates and shall be binding upon all of the foregoing persons and any person who may otherwise succeed to any right, obligation or liability under these Terms by operation of law or otherwise. A User shall not assign any of a User rights or delegate any of a User liabilities or obligations under these Terms to any other person without Site Operator's advance written consent. The Site Operator may freely assign, transfer or delegate its rights, obligations and liabilities under these Terms to the maximum extent permitted by applicable law.

8.3 Severability

In the event that any provision of these Terms, or the application of any such provision to any person or set of

circumstances, shall be determined by an arbitrator or court of competent jurisdiction to be invalid, unlawful, void or unenforceable to any extent: (a) the remainder of these Terms, and the application of such provision to persons or circumstances other than those as to which it is determined to be invalid, unlawful, void or unenforceable, shall not be impaired or otherwise affected and shall continue to be valid and enforceable to the fullest extent permitted by law; and (b) Site Operator shall have the right to modify these Terms so as to effect the original intent of the parties as closely as possible in an acceptable manner in order that the transactions contemplated hereby be consumed as originally contemplated to the fullest extent possible.

8.4 Force Majeure

Site Operator shall not incur any liability or penalty for not performing any act or fulfilling any duty or obligation hereunder or in connection with the matters contemplated hereby by reason of any occurrence that is not within its control (including any provision of any present or future law or regulation or any act of any governmental authority, any act of God or war or terrorism, any epidemic or pandemic, or the unavailability, disruption or malfunction of the Internet, the World Wide Web or any other electronic network, the Blockchain Systems or Third-Party Smart Contract Systems or MetaLeX Smart Contract System or any aspect thereof, or any consensus attack, or hack, or denial-of-service or other attack on the foregoing or any aspect thereof, or on the other software, networks and infrastructure that enables Site Operator to provide the Site), it being understood that Site Operator shall use commercially reasonable efforts, consistent with accepted practices in the industries in which Site Operator operates, as applicable, to resume performance as soon as reasonably practicable under the circumstances.

8.5 Amendments and Modifications

These Terms may only be amended, modified, altered or supplemented by or with the written consent of the Site Operator. The Site Operator reserves, the right, in its sole and absolute discretion, to amend, modify, alter or supplement these Terms from time to time. The most current version of these Terms will be posted on the Site. Any changes or modifications will be effective immediately upon the modified Agreement being posted to the Site. A User shall be responsible for reviewing and becoming familiar with any such modifications.

Each User hereby waives any right such User may have to receive specific notice of such changes or modifications. Use of the Site by a User after any modification of these Terms constitutes the User's acceptance of the modified terms and conditions. If a User does not agree to any such modifications, the User must immediately stop using the Site.

8.6 No Implied Waivers

No failure or delay on the part of Site Operator in the exercise of any power, right, privilege or remedy under these Terms shall operate as a waiver of such power, right, privilege or remedy; and no single or partial exercise of any such power, right, privilege or remedy shall preclude any other or further exercise thereof or of any other power, right, privilege or remedy. Site Operator shall not be deemed to have waived any claim arising out of these Terms, or any power, right, privilege or remedy under these Terms, unless the waiver of such claim, power, right, privilege or remedy is expressly set forth in a written instrument duly executed and delivered on behalf of Site Operator, and any such waiver shall not be applicable or have any effect except in the specific instance in which it is given.

8.7 Entire Agreement

These Terms constitute the entire agreement between the parties relating to the subject matter hereof and supersede all prior or contemporaneous agreements and understandings, both written and oral, between the parties with respect to the subject matter hereof.

8.8 Rules of Interpretation

- “hereof,” “herein,” “hereunder,” “hereby” and words of similar import will, unless otherwise stated, be construed to refer to these Terms as a whole and not to any particular provision of these Terms;
- “include(s)” and “including” shall be construed to be followed by the words “without limitation”;
- “or” shall be construed to be the “inclusive or” rather than “exclusive or” unless the context requires otherwise;

- any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not be applied in the construction or interpretation of these Terms;
- section titles, captions and headings are for convenience of reference only and have no legal or contractual effect;
- whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders; and
- except as otherwise indicated, all references in these Terms to “Sections,” “clauses,” etc., are intended to refer to sections, clauses, etc. of these Terms.

EXHIBIT A

DISCLAIMERS/DISLCOSURES

Technology Risks

No Warranties Etc.

MetaLeX Protocol and all other relevant technologies are being provided on an as-is basis, without representation, warranty, insurance or indemnity, and that all participation is solely at your own risk.

Irreversibility of Transactions and Lack of Remedies and Insurance for Damages.

Blockchain transactions are, under normal conditions, irreversible. Any Blockchain Tokens you deposit into MetaLeX-related Smart Contracts are subject to potential risk of permanent disablement, impairment, loss or forfeiture in the event of any exploits, bugs or malfunctions of the relevant Smart Contracts or the underlying blockchain itself, and no remedy will be available from any person due to any damages you may suffer in connection with your participation in the MetaLeX Smart Contract system or use of any of the relevant technologies.

Experimental Technology; Technical Risks; Independent Due Diligence Required.

The technologies and assets involved in the MetaLeX Smart Contract system are highly experimental and risky, have uncertain and potentially volatile value, and should be directly evaluated by experts in blockchain technologies before use. Use them solely at your own risk. You must not rely on any articles, summaries or published code audits as an accurate description or evaluation of the MetaLeX Smart Contracts, Blockchain Systems or any other blockchain, or for purposes of making any financial or other decision. Instead, you must only participate in the MetaLeX Smart Contract system after thoroughly reviewing and understanding the code of the relevant Smart Contracts and Blockchain Systems in your own independent due diligence process.

Multisignature Controls Over MetaLeX Smart Contract System and Third-Party Smart Contract Systems

Certain elements of MetaLeX Smart Contract Systems or Third-Party Smart Contract Systems can be modified or controlled by cryptographic multisignature Smart Contracts stored on their respective blockchains (each a “*Multisig*”). The Multisig, in turn, is administered by persons who each hold a private key, a subset of which may (by signing their respective private keys to the same transaction and broadcasting that transaction to blockchain validators) instruct validators to perform Multisig operations. It is possible for the Multisig key holders, through the Multisig, to change certain parameters of the MetaLeX Smart Contracts or Third Party Smart Contract Systems. This discretion of the Multisig key holders constitutes a material risk, and could enable your Blockchain Tokens to be adversely impacted, lost, damaged, used in unexpected ways, subjected to unexpected risks, or misappropriated. Additionally, the Multisig may be able to arbitrarily change Smart Contract code, which could enable Blockchain Tokens on those blockchains to be misappropriated if at least three of the Multisig key holders collude.

Financial Risks

Risks of Token Deposits and Locking.

When you deposit any Blockchain Tokens into the staking/delegation functionality on Blockchain Systems or into MetaLeX-related Smart Contracts on an Host Blockchain System, you are committing such Blockchain Tokens to the sole and absolute control of the applicable software systems until such time as you withdraw such Blockchain Tokens from such Smart Contracts. Staking with a validator, and certain other staking or deposit mechanisms, may not allow for immediate withdrawal of Blockchain Tokens. If a lockup period or ‘un-bonding’ period or other limit on withdrawals applies, you will not be able to withdraw Blockchain Tokens until the applicable period expires. During the time your Blockchain Tokens are controlled by the applicable software system, you will lose all powers over and benefits with respect to such Blockchain Tokens, other than the specific uses that such code allows you to make of such Blockchain Tokens during the deposit period, if any. You may lose financial opportunities, or the value of your Blockchain Tokens may decline during such deposit periods. Depending on the exact technology and functions involved, even systems that normally allow immediate withdrawals can impose withdrawal delays or have withdrawals become unavailable, whether as a result of “slashing events,” “liquidation events,” “illiquidity events”, “insolvency events,” “hacks,” “exploits,” or otherwise—any such events may lead to partial or total financial loss of your Blockchain Tokens.

Tax Risks.

Choosing to receive any Blockchain Tokens can have adverse tax consequences and result in financial losses net of taxes, depending on your circumstances and tax jurisdiction. Engaging in liquidity mining, staking, validating or participation in any Smart Contract Systems involving Blockchain Tokens may have adverse tax consequences and result in financial losses net of taxes, depending on your circumstances.

Risks of MetaLeX Research, Development, Deployment, Maintenance, Etc.

Risks of No Promised Efforts or Resources.

No person or entity has promised you, or assumed any obligation to you to exert or provide financial or other support for, any efforts, capital or resources in connection with the MetaLeX Protocol. No person or entity has promised you, or assumed any obligation to you to exert or provide financial support for, any research, development, promotion, marketing, maintenance, monitoring, or improvements relating to the MetaLeX Protocol. Any past, present or future efforts on the part of any entity or person are being conducted on a voluntary and not committed basis, and are not intended as, and must not be construed or relied upon as, a promise of continuing efforts.

Risks of Decentralized Governance.

Any Smart Contract parameter adjustments, network client updates, or other changes required to the MetaLeX Smart Contract Systems or any Third-Party Smart Contract System or related Blockchain System may require approval of decentralized governance modules, “DAOs” or similar mechanisms, which consists of a dispersed group of Blockchain Token holders that may be unable or unwilling to sufficiently coordinate to produce action.

Nature of MetaLeX Documentation, Articles, Interviews, Podcasts, Tweets, Etc.

Informational Purposes Only; No Warranties.

All publications, articles, blogs, tweets, messages, posts, documents, statements, analyses and information relating to the MetaLeX Ecosystem (collectively, “*MetaLeX Content*”) are intended solely for general educational purposes regarding the software systems relating to the MetaLeX Ecosystem and not as financial, legal, accounting, investment, or other advice or services. Accessing or using the MetaLeX Content does not create any fiduciary, service or other contractual or common law relationship between you and the persons who produce or publish the MetaLeX.

The MetaLeX Content is not intended as and does not provide or create or constitute a part of any advice, representation, warranty, certification, guarantee, promise, offer, solicitation, undertaking, service, indemnity, insurance, partnership, joint venture, or enterprise, express or implied. The MetaLeX Content is not and does not constitute a part of an offer or agreement to make any products or services available now or in the future, to maintain or update or improve any technologies or content, or to sell or buy or otherwise transact in any asset or enter into any transaction.

The MetaLeX Content may be inaccurate, incomplete, out-of-date, or biased. The MetaLeX Content may utilize incorrect data and assumptions, make incorrect predictions, or fail to account for material risks. The MetaLeX Content was not prepared by fiduciaries, has not been assessed by independent third parties and may have been prepared by persons with undisclosed material conflicts of interest.

All use of the MetaLeX Content and the technologies described therein is solely at your own risk. You must not rely on the MetaLeX Content as a basis for making any financial or other decision but must instead conduct your own independent due diligence into all relevant matters or engage your own professional advisors to conduct such due diligence on your behalf.

No Governmental/Regulatory Review or Approval.

The MetaLeX Content and the matters described in the MetaLeX Content have not been reviewed, approved, endorsed, opined on, licensed or registered by or with any regulator or other entity (including governmental agencies, commissions, and self-regulatory organizations), and the authors of the MetaLeX Content are not licensed to provide any legal, financial, accounting, investment, broker, dealer, or other advice or services.

Uncertain Nature of Forward-Looking Statements; No Duty to Update.

The forward-looking statements in the MetaLeX Content are subject to numerous assumptions, risks and uncertainties, and thus the events described or predicted therein are subject to change or to fail to occur in accordance therewith. The authors of the MetaLeX Content undertake no obligation to update, supplement or amend any statement that becomes inaccurate or incomplete after the date on which the MetaLeX Content is first published, or to alert the public as to any such inaccuracy or incompleteness, whether such inaccuracy or incompleteness arises as a result of new information, changes in plans, unanticipated events or otherwise.

Risks of Differences Between DeFi and TradFi

Metaphorical Use of Financial Terms; Lack of Legal Recourse for Funds.

When used in connection with MetaLeX, the terms ‘debt,’ ‘lend,’ ‘borrow,’ ‘collateral,’ ‘credit,’ ‘leverage,’ ‘bank,’ ‘borrow,’ ‘yield,’ ‘invest’ and other similar terms are not meant to be interpreted literally. Rather, such terms are being used to draw rough, fuzzy-logic analogies between the heavily automated and mostly deterministic operations

of a decentralized-finance Smart Contract system, on the one hand, and the discretionary performance of traditional-finance transactions by people, on the other hand.

For example, ‘debt’ is a legally enforceable promise from a debtor to a creditor to pay an interest rate and eventually repay the principal. Therefore, ‘debt’ cannot exist without legal agreements and cannot be enforced without courts of law. By contrast, with MetaLeX, there are no legal agreements, promises of (re-)payment or courts of law, and therefore there are no debts, loans or other traditional finance transactions involved in using MetaLeX.

Instead, MetaLeX consists of software (including embedded game-theoretic incentives and assumptions) through which people can share their Blockchain Tokens with other people or Smart Contract systems. Unlike in traditional lending, the ‘lender’s’ financial return does not depend primarily on the creditworthiness, solvency or financial skill of the ‘borrower’ or on legal nuances such as the perfection of liens or the priority of creditor claims in a bankruptcy — it depends primarily on the incentive model assumed by the software design and how reliably the software implements that model.

Any ‘rate,’ ‘APR,’ ‘APY,’ ‘yield,’ ‘interest rate,’ ‘ROI’ or other form of return stated in connection with MetaLeX for lending, borrowing, depositing, staking or otherwise transacting in a given Blockchain Token, strategy or Smart Contract system, (the “*Rate*”) is denominated in terms of a specific relevant Blockchain Token, not in terms of U.S. Dollars or other fiat currencies. Each Rate is a forward-looking projection based on a good faith belief of how to reasonably project results over the relevant period, but such belief is subject to numerous assumptions, risks and uncertainties (including Smart Contract security risks and third-party actions) which could result in a materially different (lower or higher) Blockchain Token-denominated ‘rate,’ ‘APR,’ ‘APY,’ ‘yield,’ ‘interest rate,’ or ‘ROI.’

Rates are not offers, promises, agreements, guarantees or undertakings on the part of any person or group of persons, but depend primarily on the results of operation of Smart Contracts and other autonomous or semi-autonomous systems (including third-party systems) and how third parties interact with those systems after the time of your deposit. Even if a particular projected Rate is achieved, you may still suffer a financial loss in fiat-denominated terms if the fiat-denominated value of the relevant Blockchain Tokens (your deposit and any Blockchain Tokens allocated or distributed to you pursuant to the Rate) declines during the deposit period. Projected Rates are not interest rates being paid on a debt.

Thus, the transactions you can perform by using MetaLeX, although they are superficially similar to traditional financial transactions in some ways, are in fact very different. ‘DeFi’ and ‘TradFi’ each pose their own unique set of costs, benefits, risks and protection mechanisms. Please bear this fact in mind when reading about MetaLeX, and do not use MetaLeX without a sufficient understanding of how doing so differs from traditional financial transactions. The only way to fully understand such factors is to have a strong understanding of the relevant technical systems and the incentive design mechanisms they embody — we strongly encourage you to review MetaLeX’s technical documentation and code before use.

Lack of Governmental/Regulatory Oversight.

MetaLeX Protocol and all related facts and circumstances have not been reviewed, approved, endorsed or registered with any regulator or other governmental entity. The creators of the MetaLeX Protocol and the validators who operate the Blockchain Systems are not licensed by any regulator or other authority to provide any legal, financial, accounting, investment or other advice or services.